

25CHCV02149 25CHCV02149

County: los-angeles

Division: Civil Law and Motion

Department: F43

Hearing date: 2026-07-13

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Case Number: 25CHCV02149 Hearing Date: July 13, 2026 Dept: F43

Dept. F43

Hearing Date: 07-13-26

Case # 25CHCV02149, Robleto v. Andy
Gump, Inc., et al.

Trial Date: None set.

MOTION FOR LEAVE TO
FILE A FIRST AMENDED COMPLAINT

MOVING PARTY: Plaintiff Carlos Robleto

RESPONDING PARTY: No opposition was filed.

RELIEF REQUESTED

Order granting plaintiff leave to file a
First Amended Complaint to add a premises liability cause of action.

RULING: Motion is denied without prejudice.

SUMMARY OF ACTION

This personal injury action arises from a
two-vehicle collision that occurred on March 8, 2024 on a private driveway at
21380 Needham Ranch Parkway, Santa Clarita, CA.

Plaintiff Carlos Robleto (Plaintiff) alleges defendant Ricardo Cervantes, Jr. was driving a vehicle owned by defendant Andy Gump, Inc. while within the scope of his employment with defendant Andy Gump, Inc. when he collided with Plaintiff's vehicle. As a result, Plaintiff suffered bodily injuries and damages. On June 20, 2025, Plaintiff filed a complaint, asserting motor vehicle and negligence. Andy Gump, Inc. and Cervantes filed and served a joint answer on August 11, 2025.

On April 20, 2026, Plaintiff filed a motion for leave to file a first amended complaint to allege a premises liability claim against the owner of the private driveway, DrinkPAK, LLC. The court denied the motion without prejudice. (6/1/26 Minute Order.)

Plaintiff filed a renewed motion on June 4, 2026. No opposition was filed.

ANALYSIS

A. Granting

Leave to File an Amended Pleading (Code Civ. Proc., § 473, subd. (a)(1))

"The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer.

The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

(Code Civ. Proc., § 473, subd. (a)(1).)

Judicial policy favors resolution of all disputed matters between the parties, and therefore, courts have held that "there is a strong policy in favor of liberal allowance of amendments." (*Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296-297.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Superior Court* (1959) 172

Cal.App.2d 527, 530, citations omitted.)

Motions for leave to amend must also meet certain procedural requirements. California

Rules of Court, rule 3.1324(a) requires the motion to “(1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.”

Additionally, Rule 3.1324(b) requires that the declaration in support of a motion for leave to file an amended complaint must state: “(1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier.”

Plaintiff seeks to add a premises liability cause of action against new defendant DrinkPAK, LLC.

Plaintiff presents the declaration of attorney Scott E. Braybrooke, a copy of the original complaint, and a copy of the proposed First Amended Complaint and Summons. (Declaration of Scott E. Braybrooke, Exhs. A, B.)

1. The motion fails to comply with California Rules of Court, rule 3.1324(a).

The court has reviewed the notice of motion, supporting exhibits, and the memorandum of points and authorities and finds that Plaintiff has again failed to comply with Rule 3.1324(a).

Mr. Braybrooke states the only amendment is a third cause of action for premises liability against new defendant DrinkPak, LLC, states no allegations will be deleted, and includes a copy of the proposed First Amended Complaint. (Braybrooke Decl. ¶¶ 4-5.) However, rather than setting forth the proposed allegations in the notice of motion or the memorandum and points of authority (Rule 3.1324(a)(2)), Plaintiff states he learned new facts supporting

a premises liability claim against DrinkPak, LLC concerning the alleged incident and directs the court to page six of the proposed amended complaint. (Notice of Motion at p. 2:4-9.)

Mr. Braybrooke's declaration satisfies the requirements of Rule 3.1324(b). Mr. Braybrooke states the legal effect of the amendment – asserting a premises liability claim against DrinkPak, LLC. (Braybrooke Decl. ¶ 5.) On February 23, 2026, Mr. Braybrooke deposed defendant Cervantes who testified he was unaware that the private driveway he entered shortly before the accident was posted as “Do Not Enter.” (Id. ¶ 3.) Cervantes also produced dashcam video from his vehicle which supposedly showed the “Do Not Enter” sign was bent and twisted and not visible for drivers attempting to enter the driveway. (Id.) The bent sign supports asserting a premises liability cause of action but does not clarify when Mr. Braybrooke first believed or became informed that DrinkPAK, LLC may own and control the property where the driveway was located on the day of the accident. (Id.)

¶ 5.) Mr. Braybrooke claims defense counsel, Jan Buddingh, initially suggested bringing DrinkPak, LLC into litigation but does not state when the suggestion occurred. (Id. ¶ 5.) Regardless, the court infers Mr. Braybrooke initially learned facts supporting a premises liability claim as early as February 23, 2026.

Therefore, Plaintiff fails to comply with California Rules of Court, rule 3.1324(a).

2. Defendants will not suffer prejudice from the amendment.

Plaintiff claims the amendment will cause no prejudice to defendant Andy Gump, Inc. and Ricardo Cervantes, considering their attorney suggested the prospect of bringing DrinkPak, LLC into this litigation as a cross-defendant. (Braybrooke Decl. ¶¶ 5-6.)

If the party seeking the amendment has been “dilatory,” and the delay has prejudiced the opposing party, the judge has discretion to deny leave to amend. (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2020) [Weil

& Brown], ¶ 6:655, citations omitted.)

“Prejudice exists where the amendment would result in a delay of trial, along with loss of critical evidence, added costs of preparation, increased burden of discovery.” (Id., at ¶ 6:656, citations omitted.) However, “the fact that the amendment involves a change in legal theory which would make admissible evidence damaging to the opposing party is not the kind of prejudice the court will consider.” (Id.) Absent prejudice, any claimed delay alone is not grounds for denial. (Id., at ¶ 6:653 [citing Higgins v. Del Faro (1981) 123 Cal.App.3d 558, 564-565].) “Even if some prejudice is shown, the judge may still permit the amendment but impose conditions, as the Court is authorized to grant leave ‘on such terms as may be proper.’” (Weil & Brown, supra, at ¶ 6:663, citation omitted.)

The court agrees the parties will suffer no prejudice from the amendment because this action is relatively new and defense counsel suggested bringing DrinkPak, LLC into the matter.

Because Plaintiff’s motion does not comply with Rule 3.1324(a), the court denies Plaintiff’s motion without prejudice.

CONCLUSION and ORDER

Motion is denied without prejudice.

Plaintiff to give notice.